

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 14, 2026 TIME: 8:30 A.M.

1 – 10: These requests are denied because they are already included in this Court's file.

12-15 Documents filed in US District Court for the Northern District of California in case no. 5:25-cv-07307-VKD. Granted.

16, 18-20: These requests are denied because they are already included in this Court's file.

21: "Notice to the Clerk's Office Regarding Method of Service" filed by the Grays in US District Court for Northern California, case no. 5:25-cv-07307-VKD, filed January 29, 2026. Granted.

22: This request is denied because it is already included in this Court's file.

23: Order from the US District Court for the Northern District of California – San Jose District, case no. 5:25-cv – 6967-NW. Granted.

24: Order from the US District Court for the Northern District of California -San Jose District, case no. 5:25-cv-07307-BLF, dismissing case as to Warren Verbanec with prejudice on 12/05/25. Granted.

26. Document entitled "Record of State Doc Regarding Removal" filed by the Grays in the US District Court for the Northern District of California – San Jose District, case no. 5:25-cv-07307-BLF, filed on 01/05/26. Granted.

30. Order from the US District Court for the Northern District of California – San Jose District, case no. 5:25-cv-07307-BLF issued on 03/30/26. Granted.

31: Order from the US District Court for the Northern District of California – San Jose District, case no. 5:25-cv-07307-BLF, issued 04/01/26. Granted.

No. 24CV03581

GRISCHY v. SANDERS

**DEFENDANT'S MOTION TO FILE ANSWER TO PLAINTIFF'S SECOND
AMENDED COMPLAINT AND TO FILE A CROSS- COMPLAINT**

The motion is denied without prejudice because there is no proof of service. (See, Cal. Rules of Court, rule 3.1300(c) "[p]roof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.")

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 14, 2026 TIME: 8:30 A.M.

No. 25CV00613

JIMENEZ v FCA US, LLC

MOTION TO COMPEL INITIAL DISCLOSURES

This is a Song-Beverly, negligent repair, and fraud action filed on February 21, 2025, against defendants FCA US, LLC (“FCA”) and Watsonville Chrysler Dodge Jeep Ram. Plaintiff seeks to compel documents it asserts FCA did not disclose as required pursuant to Code of Civil Procedure section 871.26 and seeks \$2,500.00 in sanctions against FCA and its counsel.

In opposition, FCA contends plaintiff filed this motion without engaging in the meet and confer process and that it served disclosures and documents in a timely manner on or about June 23, 2025. (Opp. at p. 1.) FCA maintains it does have additional documents to produce but will provide them only after the execution of a stipulated protective order, which it circulated to plaintiff’s counsel on June 12, 2025. FCA contends that plaintiff’s counsel will not stipulate to the proposed protective order even though it has done so in other cases and is based upon the Los Angeles County Superior Court protective order model. (Decl. of Gavrilesco at ¶¶ 9-10, Ex. A.)

At the last hearing on June 8, 2026, plaintiff’s counsel requested a continuance because defendant had recently served the outstanding discovery and he sought time to review it. The parties are directed to appear to provide the Court with an update on the status of the discovery dispute.

No. 22CV00539

BRIGHT v. CALIFORNIA FAIR PLAN ASSOCIATION

PLAINTIFFS’ MOTION TO COMPEL DEFENDANT CALIFORNIA FAIR PLAN ASSOCIATION’S PMQ

The motion is granted as discussed below.

This is an insurance bad-faith case brought by the Brights (“plaintiffs” or “Brights”) against their home insurer, the California Fair Plan Association (“CFPA”). Plaintiffs contend that CFPA denied their insurance claim for damage to their home after the CZU-fires in 2020. Specifically, CFPA denied their claim on the grounds that there was no physical damage caused by the fire and that their loss was confined to smoke and ash, which was not covered. Plaintiffs contend that CFPA amended its standard policy language to re-define “direct physical loss”, requiring actual loss or physical damage. Plaintiffs’ assert CFPA told the Department of